

26AVCV00196 26AVCV00196

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-16

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Case Number: 26AVCV00196 Hearing Date: July 16, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

APRIL BARTLETT,

Plaintiff,

v.

ROBERT SELAN, an individual, LISA SELAN, an individual, and ONION PLANT, LLC,

Defendants.

Case Number 26AVCV00196

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 16, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract action arising from the Defendants' Robert Selan, Lisa Selan, and Onion Plant, LLC (collectively Defendants) alleged non-payment for services performed by Plaintiff April Bartlett (Plaintiff). Plaintiff moves the Court for leave to file a Second Amended Complaint (SAC). Defendant moves the Court for an order striking the SAC.

On February 6, 2026, Plaintiff filed a complaint against Defendants.

On April 10, 2026, Defendants demurred to the complaint. The demurrer was set for hearing on August 4, 2026.

On April 14, 2026, Plaintiff filed her First Amended Complaint (FAC) against Defendants, asserting causes of action for (1) breach of contract, (2) money had and received, (3) conversion, and (4) fraud – intentional misrepresentation and concealment. Plaintiff also requests punitive damages.

On May 7, 2026, Plaintiff filed a motion for leave to file a Second Amended Complaint (SAC).

On May 8, 2026, Defendant filed a motion to strike Plaintiff's SAC.

Both motions are unopposed.

II. Legal Standard

Standard for Leave to File an Amended Complaint – Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." This discretion should be exercised liberally in favor of amendments, for "judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

"The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare." (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) However, "[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citation], this policy should be applied only '[w]here no prejudice is shown to the adverse party . . . ' [Citation.] A different result is indicated '[w]here inexcusable delay and probable prejudice to the opposing party' is shown. [Citation.]" (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend." (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.)

Under rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Id., subd. (b).)

III. Discussion

Application – Plaintiff requests leave to file an SAC to address issues and deficiencies in her FAC raised by Defendants. (Notice of Motion, p. 2:1-3.)

a. Procedural Compliance With Rule 3.1324

Strictly speaking, Plaintiff has not complied with California Rules of Court rule 3.1324, subdivision (a). Plaintiff attached a proposed second amended complaint, which is serially numbered to differentiate it from prior pleadings. On the other hand, Plaintiff has also sufficiently identified the principal changes made to the second amended complaint. (Motion, p. 4:15-23.).

b. Leave to Amend

The Court has discretion to require compliance with Rule 3.1324 before granting leave to amend. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.) Here, the Court exercises its discretion to grant leave without Plaintiffs' strict compliance with California Rules of Court, rule 3.1324. Based on the record, the Court finds no significant delay in bringing these amendments and no substantial prejudice to Defendant.

The motion for leave is unopposed, and this action is in the early stages as it was commenced only approximately five months prior to the hearing on this motion. There is no evidence that discovery is underway, much less completed, and the amendments appear to be targeted at rectifying pleading deficiencies following a meet and confer correspondence from Defendants regarding Plaintiff's FAC. Accordingly, the Court finds that Plaintiff did not delay and timely brought this motion, and finds no prejudice to Defendant at this stage in the litigation.

Accordingly, Plaintiff's motion for leave to file a Second Amended Complaint is GRANTED.

c. Defendant's Motion to Strike

Defendants move to strike Plaintiff's SAC on the grounds that she unilaterally filed an SAC on May 5, 2026 without court approval or stipulation of the parties. (Notice of Motion, p. 2:1-3, 3:10-11.)

The Court notes that no SAC has been filed, and the motion to strike was apparently filed based on a miscommunication regarding, or misunderstanding of, the record.

Accordingly, Defendant's motion to strike the SAC is DENIED without prejudice.

IV. Conclusion

Plaintiff April Bartlett's Motion for Leave to File a Second Amended Complaint is GRANTED. Plaintiff is to file a Second Amended Complaint within 10 days of this Order.

Defendants Robert Selan, Lisa Selan, and Onion Plaint, LLC's Motion to Strike Plaintiff's Second Amended Complaint is DENIED.